STANDARD OPERATING PROCEDURE			A-8300	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 04/01/07	DATE REVISED **03/03/17**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ADMINISTRATION		RESOURCES N.R.S. 77-1719 THROUGH 77-1724		
SUBJECT DISTRESS WARRANTS		CROSS REFERENCE		

I. Purpose:

The purpose of this policy is to establish the procedures and the collection of monies from Delinquent Property Taxes (Distress Warrants).

II. Policy:

The Sheriff's Office is responsible for the collection of monies from Delinquent Property Taxes. The tax statements (Distress Warrants) are generated by the State of Nebraska and are delivered to the Sheriff's Office yearly by the Treasurer's Office, generally on or before November 1st. Occasionally, the Treasurer's Office will generate Accelerated/Unmatched statements. (Unmatched statements are for those persons who are moving, whose business is moving or is defunct and the taxes are due.)

III. Procedures:

A. Distress Warrant Procedures-Account Clerk-Warrants Unit Responsibilities:

Once the Treasurer has delivered the Distress Warrants, it is the duty of the Sheriff's Office to maintain the files, collect monies, and update/return the statements. The Account Clerk-Warrants Unit shall be responsible for the processing of the Distress Warrants.

1. The Account Clerk-Warrants Unit shall have the Sheriff sign the form the State provides which acknowledges receipt of the warrants. (The date signed will be one of the dates used to sign off and return the warrants).

2. Copies of statements shall be made for Master file, distress warrant book, and statement which is mailed to the owner.

3. Copies shall be mailed with a letter explaining the Distress Warrant. The original copies are photocopied to use as service copies. The original copies are retained in the Distress Warrant files.

B. Distress Warrant Procedures-Desk Sergeant Responsibilities: Distress warrants shall be assigned to the Desk Sergeant. The Desk Sergeant shall adhere to the following procedures:

1. The Desk Sergeant shall attempt to make contact with the individuals in an attempt to collect monies, including Additional Interest amounts, and Levy & Return fees.

2. If the Desk Sergeant is unable to locate the property, a note shall be made to return the distress warrant advising the State that "no property could be found on which to levy."

3. If the amount due cannot be collected, any personal property owned, whether taxable or not, will be seized by the Sheriff's Office to satisfy the lien. The Sheriff's Office shall then prepare for sale of the seized property.

C. Payments Towards Distress Warrants: If an individual comes to the Sheriff's Office to make a payment on a Distress Warrant the following procedures shall be adhered to:

1. The receptionist will notify the Account Clerk-Warrants Unit that a person is at the front counter to pay a distress warrant.

2. The Account Clerk-Warrants Unit shall calculate the Additional Interest, Levy and Return fee, Mileage, and any other fees and shall note these on the original tax statement.

3. A receipt shall be issued to the payer for the amount of money paid. All areas shall be completed on the receipt. If a partial payment is made towards the balance, it shall be noted as PARTIAL PAYMENT on the receipt.

4. The assigned deputy shall be notified as soon as possible that the warrant has been paid - either in full or partially.

5. The Account Clerk-Warrants Unit shall update the computer spreadsheet with the payment information.

6. The original statement shall be completed, the cash or check shall be attached to the statement. Checks shall be stamped pay to the order of the Sheriff. Payments (partial or full) along with the spreadsheet indicating payment are sent to the Treasurer's Office.

D. Property Sale-: When Delinquent Personal Property taxes remain unpaid, property shall be seized and must be sold at public auction.

1. The assigned Civil Process deputy shall post a Sheriff's Notice on the property in arrears.

2. The deputy posting said property shall notify the Account Clerk-Warrants Unit of the date posted.

3. The Account Clerk-Warrants Unit will prepare a Notice of Sale.

4. This notice is to be published in the legal newspaper of Sarpy County not less than twice prior to the actual sale of the property.

5. The sale must occur no less than twenty (20) days from the date of seizure (posting of the Sheriff's Notice). The owner of the property is allowed to pay, in full, the amount owed, including the publication fees, up to the time of the sale.

6. On the day of the sale, the assigned Civil Process deputy shall read the notice of sale at the courthouse on the day and time published.

a) Bids shall be opened for the entire amount owed, to include additional interest, levy fees, mileage and publication. No lower bids shall be taken.

b) The property shall be sold to the highest bidder and a receipt shall be issued to the highest bidder.

c) A bill of sale shall also be given to the highest bidder. This may be prepared before the sale or it may be mailed the next day. The bill of sale shall include the purchase price, full description of the property and name/address of new owner. The bill of sale will be signed by the Sheriff and notarized.